

Warsaw, July 29, 2022

Decision

DKE.561.16.2022

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text: Journal of Laws of 2021, item 735, as amended) in connection with Articles 7 and 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) and based on Article 58(2)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, as amended), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on Mr. J. N., Court Bailiff at the District Court for K., the President of the Personal Data Protection Office issues a reprimand to Mr. J. N., Court Bailiff at the District Court for K., running a bailiff's office in K. at ul. (...), for violating the provisions of Articles 31 and 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, as amended), consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide access to information necessary for the President of the Personal Data Protection Office to fulfill his tasks in the proceedings under reference DS.523.1496.2021.

Justification

Factual Background

In the proceedings conducted by the President of the Personal Data Protection Office (hereinafter also referred to as "the President of UODO" or "the authority") under reference DS.523.1496.2021, initiated based on the complaint of Ms. B. T., Mr. A. T., and Mr. S. T., residing in K. at ul. (...), the President of UODO, by letter dated October 20, 2021, delivered on October 26, 2021, summoned Mr. J. N., Court Bailiff at the District Court for K. in K., running a bailiff's office in K. at ul. (...) (hereinafter also referred to as "the Bailiff"), whose actions were the subject of the complaint, to provide explanations in the matter within 7 days from the date of delivery of the letter. The Bailiff did not respond to this summons.

By letter dated December 31, 2021, delivered on January 5, 2022, the President of UODO again summoned the Bailiff to provide explanations in the matter, within 7 days from the date of delivery of the letter. The letter contained a warning that in the event of the Bailiff evading providing explanations in the matter, the President of UODO could impose an administrative monetary penalty based on Article 83(5)(e) in conjunction with Article 58(1)(a) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, as amended) (hereinafter also referred to as "GDPR").

The Bailiff, by letter dated January 12, 2022, delivered to the authority on January 25, 2022, indicated, among other things, that he could not respond to the questions of the President of UODO due to a lack of access to the files of the enforcement proceedings he was conducting against the Complainants. The Bailiff stated that "(...) The case files (...) have been with the District Court (...) for about 3 years due to the need for the court to address numerous complaints filed by the debtors. The Bailiff informs that upon the return of the files from the court, he will promptly respond to the letter regarding DS.523.1496.2021(...)".

In the opinion of the President of UODO, the reason indicated by the Bailiff for the lack of response was merely apparent. It is generally the case that the Bailiff is entitled to access the files of the enforcement proceedings he conducts and can request access to those files if they are in the possession of the Court. Moreover, it is a commonly practiced procedure to make copies or duplicates

of files before transferring them to another authority. Therefore, the mere assertion of a lack of access to the files, which was neither proven nor even substantiated, could not be accepted as a credible reason for the Bailiff's failure to respond to the summons from the President of UODO.

In light of the above, by letter dated June 1, 2022, delivered on June 6, 2022, the President of UODO initiated these administrative proceedings regarding the imposition of an administrative monetary penalty on the Bailiff for violating Articles 31 and 58(1)(a) and (e) of the GDPR, consisting of a lack of cooperation with the President of UODO and failing to fulfill the obligation to provide the President of UODO with information necessary for the performance of his tasks. The content of the letter included a warning that if the Bailiff provided written comprehensive explanations in the proceedings under reference DS.523.1496.2021 and justified the previous lack of response to the summons, this circumstance could mitigate the amount of the administrative monetary penalty imposed in these proceedings or could lead to a decision not to impose it.

On July 14, 2022, a letter from the Bailiff regarding the proceedings under reference DS.523.1496.2021 was received by the authority, containing essential clarifications relevant to the case, to which the authority summoned.

Also, on July 14, 2022, a second letter from the Bailiff regarding this proceeding with reference number DKE.561.16.2022 was received by the authority, in which comprehensive explanations were provided regarding the previous lack of cooperation of the Bailiff with the authority. The letter elaborated on the reasons for the Bailiff's lack of access to the case files, which was said to hinder cooperation with the President of the Personal Data Protection Office (UODO). It was mentioned, among other things, that in the context of the enforcement proceedings against the Complainants, obtaining access to the case files by the Bailiff is practically unfeasible. It was indicated that "(...) 'model' files in the case of analogous proceedings like the present one usually contain up to 1.2 complaints in Volume I of the files. However, in the context of this proceeding, the files are contained in Volume III, and the number of complaints and reports to almost all possible institutions has exceeded several dozen, including:

- to the District Court for K. in K. (...)
- to the National Bailiff Council (...)
- to the President of the District Court for K. in K. (...)
- to the President of the Regional Court in K. (...)
- and to the President of the Court of Appeal in K. (...)
- to the District Court for K. in K. in the supervision of enforcement from real estate (...)
- to law enforcement authorities." The Bailiff also assured that the delay in providing explanations was not intentional and requested to refrain from imposing an administrative monetary penalty.

Legal Assessment

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office noted the following.

According to Article 57(1)(a) of the GDPR, the President of UODO – as a supervisory authority within the meaning of Article 51 of the GDPR – monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of UODO examines, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f)). To enable the realization of such defined tasks, the President of UODO has a number of powers specified in Article 58(1) of the GDPR regarding the proceedings conducted, including the power to order the data controller and the processor to provide all information necessary for the performance of its tasks (Article 58(1)(a)) and the power to obtain from the data controller and the processor access to all personal data and all information necessary for the performance of its tasks (Article 58(1)(e)). It should also be noted that the data controller and the processor are obliged to cooperate with the supervisory authority in the performance of its tasks, as stated in Article 31 of the GDPR.

A violation of the provisions of Articles 31 and 58(1)(a) and (f) of the GDPR, as mentioned above,

consisting of the failure of the data controller or processor to provide access to data and information, is subject – in accordance with Article 83(5)(e) in fine of the GDPR – to an administrative monetary penalty of up to EUR 20,000,000, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying. According to Article 102(1)(1) in conjunction with paragraph 3 of the Act of May 10, 2018, on the protection of personal data (consolidated text: Journal of Laws of 2019, item 1781), based on and under the conditions specified in Article 83 of the GDPR, the President of the Office may impose, by way of a decision, administrative monetary penalties of up to PLN 100,000 on entities in the public finance sector referred to in Article 9(1-12 and 14) of the Act of August 27, 2009, on public finances (including on the court bailiff).

The President of UODO has a number of remedial powers specified in Article 58(2), including issuing warnings to the data controller or processor in the event of violations of the GDPR by processing operations. The President of UODO, acting under Article 58(2)(b) of the GDPR, may consider it justified to issue a warning regarding the identified violation of the provisions of Articles 31 and 58(1)(a) and (e) of the GDPR. According to Recital 148 of the GDPR, to make the enforcement of the provisions of the regulation more effective, sanctions, including administrative monetary penalties, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a warning. However, due regard should be given to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken to minimize damage, the degree of responsibility or any relevant prior violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the data controller or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

In this case, the Bailiff did not respond to the first request from the President of UODO, and in response to the second request, provided only a fragmentary answer, containing a claim of lack of access to the enforcement case files, without indicating objective reasons substantiating this lack of access. Relating the aforementioned provisions of the GDPR to the established factual state in this case, it should be stated that the Bailiff, as the data controller, being a party to the proceeding with reference number DS.523.1496.2021, violated Article 31 of the GDPR by failing to cooperate with the President of UODO in the framework of

****Execution of his tasks, as well as Article 58(1)(a) and (e) of the GDPR due to the failure to provide the President of the UODO with access to information necessary for the realization of his tasks.****

As a result of the initiation of these proceedings, the Bailiff has, however, begun cooperation with the President of the UODO by providing detailed explanations in the proceedings DS.523.1496.2021 (point 5 of the justification of the decision), which allowed the President of the UODO to continue the proceedings in the matter. Moreover, in a separate letter (point 6 of the justification of the decision), the Bailiff substantiated the difficulties related to access to the files of the enforcement proceedings he is conducting against the Complainants, indicating that the reason for the difficulties is the large number of complaints filed against the Bailiff by the Complainants to various authorities and institutions, to which the files of the enforcement proceedings undoubtedly serve for assessing the legitimacy of the complaints.

In the factual state in question, apart from the lack of response to requests for explanations, which was supplemented by the Bailiff as a result of the initiation of these proceedings, no other circumstances indicating a lack of willingness to cooperate on the part of the Bailiff with the President of the UODO were found. In the content of the letter submitted by the Bailiff in the proceedings DS.523.1496.2021 (point 5 of the justification of the decision), the Bailiff declared his readiness for further cooperation with the authority to clarify the matter. These circumstances allow for the conclusion that the lack of response from the Bailiff to the requests of the President of the UODO in the proceedings DS.523.1496.2021 was not intentional.

In this regard, acting on the basis of Article 58(2)(b) of the GDPR, according to which each supervisory authority has the right, in the scope of conducted proceedings, to issue a reprimand to the

administrator or processor in the event of a violation of the provisions of this regulation by processing operations, the President of the UODO considers it justified to issue a reprimand to Mr. J. N., the Court Bailiff at the District Court for K. in K., regarding the established violation of the provisions of Article 31 and Article 58(1)(a) and (e) of the GDPR.

The admissibility of replacing a monetary penalty with a reprimand is also justified by Recital 148 of the GDPR, which states that sanctions, including administrative monetary penalties, should be imposed "to make the enforcement of the provisions of this regulation more effective." The President of the UODO concluded that in this case, in light of the criteria specified in Article 83(2) of the GDPR, it would be sufficient to issue a reprimand.

However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Bailiff will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles specified in Article 83(2) of the GDPR.

In this factual and legal state, the President of the UODO decided as stated in the operative part of this decision.

****The decision is final. The party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00 - 193 Warsaw). A court fee of 200 PLN must be paid for the complaint, in accordance with Article 231 in conjunction with Article 233 of the Act of August 30, 2002 on Proceedings Before Administrative Courts (Journal of Laws of 2022, item 329, as amended). The party (natural person, legal person, other organizational unit without legal personality) has the right to apply for legal aid, which includes exemption from court costs and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the application of the party submitted before the initiation of the proceedings or during the proceedings. ****

****The application is exempt from court fees. ****

****Print article****

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